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Case Number: 26NNCV01550 Hearing Date: August 14, 2026 Dept: T

Constantino

Abia, an individual vs. Advanced Auto Care, a California business entity of unknown form, et al.

Motion

to Set Aside Default

Moving Party: Defendant

Advanced Auto Care

Responding Party: Plaintiff

Constantino Abia

Tentative Ruling: Grant

BACKGROUND

This

action arises from the repair of Plaintiff

Constantino Abia's ("Plaintiff") vehicle by Defendant Advanced Auto Care ("Defendant").

On June 2, 2026, Defendant's default was entered.

Defendant now moves to set aside the default.

Plaintiff opposes, and Defendant
replies.

ANALYSIS

I.

Legal
Standard

Under

Code of Civil Procedure section 473(b), the Court may relieve a party from a default taken against him through his mistake, inadvertence, surprise, or excusable neglect, and his application must be filed no more than six months after entry of the order from which relief is sought. (Code Civ. Proc. § 473, subd. (b).) 22

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mistake is a basis for relief under section 473 when by reason of the mistake a party failed to make a timely response.2 Surprise occurs when a party is unexpectedly placed in a position to his injury without any negligence of his own. Excusable neglect is a basis for relief when the party has shown some reasonable excuse for the default.2 (Credit Managers Association of California v. National Independent Business Alliance (1984) 162 Cal.App.3d 1166, 1173; Davis v. Thayer (1980) 113 Cal.App.3d 892, 905.) Under Code of Civil Procedure section 473, the moving party bears the burden of demonstrating an excusable ground, such as fraud or mistake, justifying a court's vacating a judgment. (Basinger v. Roger & Wells (1990) 220 Cal.App.3d 16, 23-24.)2222

Relief under this section is mandatory when based on an attorney affidavit of mistake, inadvertence, surprise, or neglect; otherwise, it is discretionary. (Code Civ. Proc. § 473, subd. (b).) Under the mandatory relief provision, the affidavit does not need to contain a reason for the mistake. (Martin Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 438.)

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II. Discussion

As an initial matter, the
Court finds that this motion is timely because it was filed within
six months after the default was entered on June 2, 2026.

In considering the papers, including the parties' supplemental briefing, the Court finds that Defendant has shown that its default was the result of its counsel's inadvertence and neglect, given attorney Edgar Manukyan's attested communication failures and neglectful conduct regarding the handling of Defendant's responsive deadline to Plaintiff's complaint, which ultimately resulted in the entry of Defendant's default. (Manukyan Decl. ¶¶ 2–16.) Although Plaintiff challenges this conduct as the factual basis for Defendant's requested relief from default, the Court finds that the Manukyan Declaration is sufficient to establish attorney fault as the basis for mandatory relief under Section 473(b). (Ibid.; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 257, italics in original and citation omitted ["The purpose of this provision 'was to alleviate the hardship on parties who lose their day in court due solely to an inexcusable failure to act on the part of their attorneys.'"].)

Nor does the case record show that any default judgment entered against Defendant on July 2, 2026, as Plaintiff asserts in his supplemental briefing. Rather, it appears that a request for default judgment was filed on that date but never entered into judgment.

Therefore, the motion to set aside the default is granted.

Furthermore, as relief is granted based on the attorney's affidavit of fault, the Court shall direct defense counsel to pay reasonable compensatory legal fees and costs to Plaintiff. (Code Civ. Proc. § 473, subd. (b).) ٧٧

RULING

Defendant
Advanced Auto Care's Motion to Set
Aside Entry of Default is
GRANTED. The default entered against
Defendant on June 2, 2026, is set aside. Exhibit "2" to the
declaration of attorney Noah Green shall be deemed the operative
answer.

Defendant to

file a standalone copy of the answer forthwith for the purpose of the docket.